

23STCV28305 23STCV28305

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C07%2F21%2F2026

Source SHA-256: 0f0530ac7d1631e80ba95d92dd1ac43f6b20fc4f6777df2cc4d0a42599e0b199

Case Number: 23STCV28305 Hearing Date: July 21, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 21, 2026

Case Name: Fire Insurance Exchange v. Smith, et al.

Case No.: 23STCV28305

Matter: Motion for Summary Judgment

Moving Party: Plaintiff Fire Insurance Exchange

Responding Party: Unopposed

Notice: OK

Ruling: The Motion for Summary Judgment is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff Fire Insurance Exchange now seeks summary judgment because "(1) coverage is unavailable under Ms. Smith's Fire Insurance Exchange policy for bodily injury or property damage claims arising from the June 1, 2023 fire; and (2) Fire

Insurance Exchange did not owe a defense or indemnity in connection with the Alvarez Lawsuit. Fire Insurance Exchange is entitled to judgment as a matter of law because any claims stemming from the June 1, 2023 fire fall within the policy's business pursuits exclusion, without exception."

The Motion for Summary Judgment is granted because there is no opposition, including a separate statement of undisputed fact. (Code Civ. Proc. § 437c(b)(3).) The RJN is granted.

Moving party to give notice.